

IN THE U.S. BANKRUPTCY COURT
FOR THE WESTERN DISTRICT OF VIRGINIA
CHARLOTTESVILLE DIVISION

CRYSTAL D. LEWIS,

Plaintiff

v.

Ch. 7 Case 13-06030

CLYDE ALEXANDER LONG, JR.,

Defendant.

TRIAL

DISCHARGEABILITY - 523(a)(6)
THE HONORABLE REBECCA B. CONNELLY, PRESIDING

October 21, 2013

Charlottesville, Virginia

* * * *

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I N D E X

CLYDE A. LONG, JR., Adversary

Direct Examination By Mr. Sharman.....9

CLYDE A. LONG, JR.

Direct Examination By Mr. Slayton.....38

Cross Examination By Mr. Sharman.....50

EXHIBITS

NUMBER	DESCRIPTION	PAGE
P 1-9	Letters and Documents	11
P-10	Letter	63
P-11	Envelopes	74
D-A	Letters	42

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1 (Discussion held off the record.)

2 THE CLERK: Clyde Long, Jr. and Latoya Long,
3 13-60040, Adversary Proceeding Number 13-06030.

4 THE COURT: All right. This is a trial. I
5 think we have a creditor moving for an objection to
6 determine the dischargeability of a debt?

7 MR. SHARMAN: That's correct, Your Honor.
8 Mike Sharman. I'm Mike Sharman for the Plaintiff.

9 THE COURT: All right. Mr. Sharman, you
10 want to come forward.

11 MR. SHARMAN: Your Honor, we have our
12 exhibits and exhibit list.

13 THE COURT: Have they been filed with the
14 Court?

15 MR. SHARMAN: They hadn't and they weren't,
16 so there was no Pre-filing Order. Basically by e-mail
17 colloquy we agreed that there was no pre-filing; also,
18 we confirmed that as well with the clerk.

19 THE COURT: I thought I had request that you
20 go ahead and pre-file them, but we'll go ahead and take
21 what you have. So nothing's been filed with the Court?

22 MR. SHARMAN: Correct.

23 THE COURT: All right. So we're being
24 handed what? Is this the Court's copy? Is there a copy
25 for the other side?

1 MR. SLAYTON: I thought we were starting
2 with opening statements. This is moving into the
3 evidentiary part of the hearing. So --

4 THE COURT: All right. Are you --

5 MR. SHARMAN: Your Honor, every time that I
6 have done a trial -- I haven't done one here -- the
7 Court liked to see the -- have us tender the exhibit
8 list at the very beginning. I don't disagree that we're
9 in opening statements. So, there we are.

10 THE COURT: Okay. All right. Let me just
11 finish the question I asked. So you've handed a copy of
12 your exhibit list to the Court; have you also provided
13 the same to Debtor's counsel?

14 MR. SLAYTON: (Indicating).

15 MR. SHARMAN: Yes, ma'am.

16 THE COURT: Is there any additional copies
17 that you brought here today?

18 MR. SHARMAN: Yes ma'am.

19 THE COURT: All right. Okay. Go ahead.

20 MR. SHARMAN: Your Honor, the issue is very
21 straight forward but very strong. Mr. Long had had a
22 sexual relationship with Crystal Lewis beginning when
23 Crystal was 12 and he was 22; they conceived a child
24 together when she was 13, he was 23. Those fact aren't
25 in dispute.

1 Mr. Long had pled guilty to a
2 couple charges of Carnal Knowledge involving that. He's
3 been subject to a Support Order regarding that child.
4 There is no dispute that he had that relationship and
5 that Crystal Lewis was the victim of those two counts of
6 Carnal Knowledge. That's an intentional tort.

7 It's within the issue of the
8 non-dischargeability of a willful and malicious injury
9 under 523-A-6. I don't think the facts are going to
10 show anything more or less than that. And I believe
11 that's all the facts need to show.

12 We believe that comes within the
13 523-A-6. Virginia's Bankruptcy Courts have tended on
14 occasion to deal with the specific issue of a Sexual
15 Assault against a child; they have, of course, dealt
16 with intentional Assaults.

17 Other Bankruptcy Courts throughout
18 the nation have dealt with that issue of Sexual Assaults
19 as being an intentional -- of that willful and malicious
20 injury that is non-dischargeable.

21 Again, I don't think there's going
22 to be any difference of opinion about the facts.
23 They're -- that's it. Thank you.

24 THE COURT: Okay. All right. Thank you so
25 much. And just for the record, I'm sorry if I could

1 just get your name one more time, sir.

2 MR. SHARMAN: It's the initial J. Michael
3 Sharman, S-H-A-R-M-A-N.

4 THE COURT: Thank you, Mr. Sharman. All
5 right.

6 MR. SLAYTON: Good afternoon, Your Honor.
7 Marshall Slayton on behalf of the Debtor Defendant in
8 this case, Clyde Long.

9 For my opening, Your Honor, this is
10 a difficult set of facts. Whenever you're dealing with
11 a situation involving sex with somebody under the age,
12 it makes it a difficult set of facts to sort through.
13 But I ask you to put that -- and listen to the facts of
14 the case as it comes out.

15 There is no dispute Mr. Long
16 engaged in sexual activity and intercourse with Miss
17 Lewis. There's no dispute that he pled guilty to two
18 crime -- two charges of Carnal Knowledge of a child
19 between the ages of 13 and 15 without the use of force.

20 There's no dispute that Mr. Long
21 went to jail for three years for this crime. And
22 there's no dispute that he signed an agreement to pay
23 \$1,254,000 to Miss Lewis.

24 But these facts, those facts, the
25 facts that Mr. Sharman has mentioned in his opening

1 statement are insufficient in and of themselves for the
2 Court to find that this act by Mr. Long was willful and
3 malicious. And that's what the Court has to find, that
4 it was a willful and malicious injury.

5 So I want you to listen in the
6 evidence presented by Mr. Sharman to evidence of this
7 willfulness, the intent of Mr. Long to cause harm to
8 Miss Lewis. Listen for that.

9 And I want you to listen to the
10 evidence by Mr. Sharman that Mr. Long's Acts were
11 malicious, his actions caused injury without
12 justification or excuse. In other words, you need to
13 listen for the facts that show Mr. Long's intent.

14 The evidence will show that at the
15 beginning of the relationship Mr. Lewis -- Mr. Long did
16 not realize or was not told of Miss Lewis' age.

17 The evidence will show that the
18 first time that he met Miss Lewis she was in the
19 presence of her mother and other family members and they
20 were all drinking beer, including Miss Lewis.

21 The evidence will also show that
22 during the relationship Mr. Long cared deeply for Miss
23 Lewis, that he wanted to have a long-term relationship
24 with her and that he loved her.

25 In short, the evidence will show

1 that he did commit a strict liability crime, and that's
2 what the crime that he pled guilty to is; it's a strict
3 liability crime.

4 Knowledge, mens rea has nothing to
5 do with it. But it has something to do with this case,
6 whether the debt is dischargeable or not.

7 And while I understand that this is
8 a difficult situation and it's going to be a difficult
9 question for you to decide, you've got to go with what
10 the law requires. And the evidence isn't going to be
11 enough to show that this was a willful and malicious
12 injury to Miss Lewis.

13 THE COURT: All right. And the length
14 of time for the evidence?

15 MR. SLAYTON: I have one witness. I have
16 one exhibit which I did file this morning. I spoke with
17 the clerk and said that by the time I got notice that
18 you wanted them filed I could not get it done, but said
19 I will do it this morning. I also filed my list of
20 witnesses which is Mr. Long and anybody that Mr. Sharman
21 calls. Oh, in answer to your question for how long, we
22 both thought about an hour.

23 MR. SHARMAN: We both have the same witness.
24 I'm going to be calling Clyde Long as an adverse
25 party.

1 THE COURT: I'm inclined to go ahead and let
2 the evidence come forward. We are looking at about 1:00
3 right now; if we can try to wrap this up in less than an
4 hour, then the Court will be able to take a break before
5 my 2:00 docket.

6 MR. SLAYTON: I think that's possible, Your
7 Honor.

8 THE COURT: All right. Go ahead. Proceed.

9 MR. SHARMAN: We call Clyde Long.

10 THE COURT: Okay.

11 THE CLERK: Mr. Long, come forward and raise
12 your right hand.

13
14 CLYDE LONG, was called as an Adversary
15 Witness, and after being duly sworn, was examined and
16 testified as follows:

17
18 DIRECT EXAMINATION

19 BY MR. SHARMAN:

20 Q. Could you give your name for the record, please.

21 A. Clyde A. Long, Jr.

22 Q. And what is your birthday?

23 A. 11-10-76.

24 MR. SHARMAN: Your Honor, in the
25 presentation of exhibits to the witness, do you

1 wish me to have him refer to exhibits as I hand
2 them, or do you wish them to come to the clerk?
3 What's the Court's pleasure on that?

4 THE COURT: Well, let's first talk about --
5 you'd like to have your exhibits admitted?

6 MR. SHARMAN: Yes, ma'am.

7 THE COURT: Are there going to be any
8 objections? Do we know yet? I guess today is
9 the first day that Debtor's counsel has been able
10 to see your exhibits. So --

11 MR. SLAYTON: If I could have a moment, Your
12 Honor, to look through them. I did ask for
13 request of production, and I assumed these were
14 all in there --

15 MR. SHARMAN: Yes, they are.

16 MR. SLAYTON: -- but let me just
17 double-check.

18 MR. SHARMAN: And while he's looking, Your
19 Honor, I heard him mention that he had heard a
20 request that the Court did want to have them
21 pre-filed, and somehow I didn't get that.

22 THE COURT: Okay. All right.

23 MR. SHARMAN: Anyway --

24 THE COURT: All right. Thank you, Mr.
25 Sharman.

1 THE COURT: Have you pre-marked your
2 exhibits?

3 MR. SHARMAN: Yes, ma'am, I did it in
4 accordance with the Pretrial Order that says how
5 to do it, etcetera.

6 THE COURT: All right. All right. If they
7 are not agreed, if there's not a consent to admit
8 the exhibits, you'll need to have each one of
9 them admitted.

10 MR. SLAYTON: These are all fine, Your
11 Honor. I don't have any objection to them.

12 THE COURT: All right. Thank you so much,
13 Mr. Slayton. So what we will do then is -- are
14 you moving for the admission of your exhibits,
15 Mr. Sharman? Did I hear a motion to move for the
16 admission of all your exhibits?

17 MR. SHARMAN: Yes, ma'am. Thank you.

18 THE COURT: All right. Then we can go
19 ahead, since there's been no objection, we can go
20 ahead and admit all of the exhibits that you have
21 brought with you today. That's Exhibits 1
22 through 9, are the Plaintiff's Exhibits, and they
23 are now admitted.

24 (Plaintiff's Exhibit Numbers 1 through 9,
25 letters and documents, were admitted.)

1 MR. SHARMAN: Thank you. I'm tendering this
2 packet to the witness.

3 THE COURT: All right.

4 BY MR. SHARMAN:

5 Q. Mr. Long, within the packet that I have given you
6 and the request for admit is a letter that's been
7 admitted to be your handwritten letter to Crystal Lewis.
8 Do you recall sending a number of those letters to Mr.
9 Lewis?

10 THE COURT: What are we referring to here,
11 Mr. Sharman?

12 MR. SHARMAN: Within Exhibit 8, Your Honor,
13 we the request to admit.

14 THE COURT: All right. So there's a
15 question regarding Exhibit Number 8.

16 BY MR. SHARMAN:

17 Q. And the first document attached is a handwritten
18 letter that's been admitted; that was your handwriting,
19 correct?

20 A. Correct.

21 Q. How old was Crystal when you wrote her that?

22 A. This letter don't have a date, so I'm not sure.

23 Q. Do you recall writing this from jail?

24 A. Yes.

25 Q. And you were in jail for a repeat offender of

1 domestic violence against a former wife, correct?

2 A. I'm sorry, what was that?

3 Q. You were in jail in Albamarle for a repeat
4 offender of Domestic Violence against a former wife,
5 correct?

6 A. I remember I was incarcerated, not as a
7 re-offender but as a first-time offender.

8 Q. Okay. How much time were you doing when you
9 wrote her this?

10 MR. SLAYTON: I'm going to object this line
11 of questioning; I'm not sure where it is going or
12 why this is relevant. The document speaks for
13 itself. It's been admitted into evidence.

14 If he has a line of questioning
15 that relates to the willful and malicious injury,
16 then I think that's appropriate. I don't know
17 where this is leading.

18 THE COURT: Mr. Sharman?

19 MR. SHARMAN: When did you do that --

20 THE COURT: Mr. Sharman, a response to the
21 objection?

22 MR. SHARMAN: I'll withdraw the question.

23 THE COURT: All right.

24 BY MR. SHARMAN:

25 Q. When did you do the time that you were doing when

1 you wrote this letter?

2 A. Again, I'm not sure when the date of this letter
3 is. There's not a date on here that I can see.

4 Q. Let me see if I understood you though. You said
5 that you do recall writing this from jail?

6 A. I do recall writing the letter, but I don't
7 remember if I wrote it in jail or if I wrote it from
8 home on a -- I'm not sure.

9 Q. Okay. How old was Crystal during the time that
10 you had a relationship with her? From what age to what
11 age?

12 A. After I found out she was underage, I knew she
13 was at the age of 13.

14 Q. And how long had you been seeing her by the time
15 you found out she was 13?

16 A. I'm not sure.

17 Q. When was it that you met her?

18 A. I want to say it was Valentine's -- on
19 Valentine's Day in 2000, I believe.

20 Q. How long had you been seeing her when you were in
21 jail, by the time you were in jail?

22 A. I was incarcerated a couple times; I'm not sure
23 which period of jail time you was talking about.

24 Q. In 2000?

25 A. You're asking me when I wasn't seeing her while I

1 was incarcerated at all.

2 Q. Okay. And how long had you been seeing her by
3 the time you were incarcerated?

4 A. I'm not sure.

5 Q. So, you recall being told at some point that she
6 was 13; and who told you that?

7 A. I went and filed a piece of paper into the
8 court's office for custody, visitation, paying child
9 support; I received a letter, a notification by the
10 Commonwealth's to come in and be a witness. As I
11 proceeded to court, I understand that that's when they
12 was notifying me that she was a minor.

13 Q. Okay. And she had already been pregnant and had
14 the child by that time, correct?

15 A. Correct.

16 Q. And in the other letters that you wrote her you
17 wrote to her about her schooling and her school friends
18 too, didn't you?

19 A. I'm not sure which letter you're referring to; if
20 I could see a copy?

21 Q. Well, do you have a recollection of doing that?

22 A. I wrote several letters. There was a lot of
23 letters concerning schooling. I believe she was getting
24 home-schooled at the time.

25 Q. How tall was Crystal when you were seeing her?

1 A. I don't recall the height. I believe she was --
2 I really couldn't tell.

3 Q. She was a little girl, wasn't she?

4 MR. SLAYTON: Objection, Your Honor. He's
5 on Direct Examination. That's a leading
6 question.

7 MR. SHARMAN: I have -- it's a leading
8 question because he's an adverse party, and rule
9 611 of the Federal Rules of Evidence says I can
10 give leading questions to an adverse party.

11 THE COURT: I'll let it in.

12 THE WITNESS: The question again?

13 BY MR. SHARMAN:

14 Q. She was a little girl, wasn't she?

15 A. I wasn't able to tell at the time that she was
16 young.

17 Q. Could you repeat that, please.

18 A. At the time of me meeting her I wasn't able to
19 determine her age.

20 Q. You saw her on the bus stop occasionally?

21 A. No.

22 Q. And you knew her friends who were in school with
23 her, didn't you?

24 A. No.

25 Q. In that handwritten letter that I referred you

1 to, do you see in about the middle there it says:

2 Breakfast at the King?

3 MR. SLAYTON: Are we referring to
4 Plaintiff's Exhibit 8.?

5 MR. SHARMAN: Correct.

6 MR. SLAYTON: Okay. Thank you.

7 THE WITNESS: Yes, I see that.

8 BY MR. SHARMAN:

9 Q. And what is that referring to?

10 A. I remember eating breakfast at Burger King with
11 Crystal and some other family members of hers.

12 Q. And then immediately following that it says:
13 Early dismissal is what it did? And that's referring to
14 her early dismissal from school, right?

15 A. I'm not sure it was early dismissal from school
16 or I was talking about I left early from my job.

17 Q. And what were you working?

18 A. It says what I --

19 Q. Is what it did?

20 A. It did. I'm not sure exactly where I was working
21 at the time, back then. It look like something that I
22 either called off work or -- I'm not sure.

23 Q. And then it says a little bit later: Took a
24 test, yes, you passed? Doesn't that refer to her
25 schooling that you knew she was in?

1 A. What I understood, again, was it was
2 home-schooling on her own, what I was told at that time.
3 And I guess that there's tests and stuff that they had
4 to do as requirement.

5 Q. And what grade did you think she was in at
6 home-school?

7 A. I wasn't sure. They never told me at the time.

8 Q. In your Request to Admit, which is in your
9 Response Request to Admit, which is Exhibit Number 9,
10 that's towards the back; in Request to Admit Number 5
11 asked you to admit that you were 23 years old when
12 Diamond, the child, was conceived, and you admit that,
13 and then that Crystal was 13 when she was conceived, and
14 you admit that, correct?

15 A. Correct.

16 Q. And you admit earlier at 3 and 4 that you're the
17 father and Crystal's the mother of Diamond Lewis?

18 A. Correct.

19 Q. And throughout all the course of these, all the
20 different court proceedings that you've been in relative
21 to Diamond and Crystal, whether it was your criminal
22 proceeding, the support proceeding, the custody and
23 visitation proceedings, you've never denied the age that
24 Crystal was at the time you began your relationship or
25 at the time that she conceived and had Diamond, correct?

1 A. I never -- after the fact I was told her age I
2 never denied that, correct.

3 Q. And do you remember on Exhibit Number 5, the
4 Order entering Default Judgment; you were actually
5 present in court on that day, correct?

6 A. I don't have any exhibit -- oh, yes, I do.
7 Sorry.

8 Q. You see where it says: Order entering Default
9 Judgment, correct?

10 A. I see a Order entering Default Judgment; again, I
11 don't see a date that says I --

12 Q. Let's walk you through it. On the bottom of that
13 page it has handwriting, Page 14, and then next has
14 handwriting, Page 15, do you see that? And on the
15 second page it has the date 12-27-04, okay, for the date
16 of the entry of that Order? Do you see that?

17 A. Yes.

18 Q. Okay. And do you see on the front page of that
19 that there is the interlineation: Although the
20 Defendant appeared in person this date. Do you see
21 that?

22 A. No. If you can point that out.

23 MR. SLAYTON: Your Honor, again I would say
24 that the document speaks for itself.

25 MR. SHARMAN: It does.

1 MR. SLAYTON: I don't know why we --

2 MR. SHARMAN: I'm just directing his
3 attention to that area to ask him a question
4 about it.

5 THE COURT: So the question is can he read
6 the statement that's on the document that's
7 admitted into evidence?

8 MR. SHARMAN: No. Does he see it?

9 THE COURT: Does he see the writing?

10 MR. SHARMAN: Yes, just so that I can --

11 THE COURT: All right. So it looks like,
12 Mr. Long, do you see the writing on that exhibit
13 that's been admitted into the record?

14 THE WITNESS: Yes, I do, I see it.

15 BY MR. SHARMAN:

16 Q. And you were in court that day that the default
17 was entered, correct?

18 A. I was.

19 Q. And the Judge asked you if you had any reason why
20 there should not be any default entered; and you did not
21 mention any sort of defense about, I didn't know her age
22 or anything of that nature, correct?

23 A. I believe on that day the Judge asked me some
24 questions; and when he asked me the question I tried my
25 best to answer, and he said that I didn't have no

1 statute or something leading for it not to be in
2 default.

3 Q. And then on Number 4, which is the Motion for
4 Judgment that was defaulted?

5 A. Number 4?

6 Q. Um-hum, Exhibit Number 4. It says: Motion for
7 Judgment?

8 A. I'm not sure what I'm looking at.

9 MR. SHARMAN: May I approach, Your Honor?

10 THE WITNESS: Exhibit 4?.

11 THE COURT: All right. You can point to
12 instructions.

13 MR. SHARMAN: (Indicating).

14 THE WITNESS: You are asking me, do I see a
15 Motion for Judgment?

16 MR. SHARMAN: Um-hum.

17 THE WITNESS: Yes, I see it.

18 BY MR. SHARMAN:

19 Q. All right. And then on Number 11 and 12 on Page
20 2 of that it alleged that y'all began your sexual
21 relationship when she was 12 and that relationship like
22 that is chargeable as Rape in Virginia?

23 MR. SLAYTON: Your Honor, at this point I'm
24 going to object. I think what -- it looks like
25 what Mr. Sharman is many doing is trying to prove

1 evidence based upon a Default Judgment. For a
2 couple bases. I mean, the document speaks for
3 itself. There's a Default Judgment entered into.

4 But if he's trying to bootstrap
5 evidence in as far as what the intent or what the
6 knowledge was, that issue wasn't litigated in the
7 lower court; it was a Default Judgment, and my
8 client was in default because he didn't file an
9 Answer in time.

10 He's trying to use some collateral
11 estoppel argument that this issue's already been
12 litigated; that's inappropriate at that point
13 because it wasn't a litigated issue in the lower
14 court.

15 So I think the document's been
16 admitted into evidence; Your Honor is perfectly
17 able to read it and to make, you know, the
18 decision. But I don't think that becomes
19 evidence in this case.

20 THE COURT: Mr. Sharman, your response?

21 MR. SHARMAN: One, I was going to ask him a
22 question related to that.

23 But in terms of collateral
24 estoppel -- and I think this is collateral
25 estoppel -- the issue of actual litigation, one

1 can have a Default Judgment and be actually
2 litigated for the purposes of collateral
3 estoppel.

4 You can on a Demurrer. You can on
5 Summary Judgment. You can on any of the dilatory
6 pleas. Particularly when, as we have here, the
7 person was in court and obviously had a colloquy
8 with the Court.

9 The question, just to proffer
10 where I'm going with that, is to ask him: And at
11 that time, with those items being the subject of
12 the default, you did not dispute that nor advance
13 any dispute to that to the Judge when he asked
14 you?

15 THE COURT: Let's go ahead and ask questions
16 of this witness that are within his knowledge.

17 This part of the proceeding was
18 intended to be the fact-finding part of the
19 proceeding. Let's limit the evidence to those
20 facts that I need to find. Let's limit our
21 questions to questions that are relevant to or a
22 consequence to a fact that I need to find.

23 Let's save the argument for another
24 part of the proceeding. So I sustain the
25 objection, but you may rephrase -- you may

1 continue with your questioning, you may simply
2 see if you can rephrase your question.

3 BY MR. SHARMAN:

4 Q. You did not dispute any of the facts within the
5 Motion of Judgment to the Court on December 27th, 2004,
6 did you?

7 MR. SLAYTON: Objection, Your Honor. Asked
8 answered again.

9 MR. SHARMAN: I don't think I had asked
10 that.

11 MR. SLAYTON: He said what he remembered
12 that happened in the courtroom. We don't have
13 the Judge here; we don't know what the Judge
14 asked. My client says what he remembered.

15 THE COURT: I sustain the objection.

16 MR. SHARMAN: I think that will be all, Your
17 Honor.

18 THE COURT: All right. Any other questions
19 of this witness?

20 MR. SLAYTON: Well, I will call him in my
21 primary case if I need to, Your Honor.

22 THE COURT: All right. Mr. Long, I don't
23 have any questions for you. You may step down.

24 (Witness stood down.)

25

1 MR. SHARMAN: We'd rest, Your Honor.

2 THE COURT: All right.

3 MR. SLAYTON: Your Honor, at this point I'm
4 going to make a Motion to Strike.

5 First of all, during the last line
6 of questioning Mr. Sharman said that he believes that
7 the issues -- there's collateral estoppel.

8 There was a Pretrial Order entered
9 in this case, Your Honor, and that Pretrial Ordered that
10 all Pretrial Motions be filed and heard prior to today.
11 No Pretrial Motions were filed. If collateral estoppel
12 was an issue, I assume that should have been filed
13 during that motion.

14 Even if the Court's -- that's
15 incorrect, I will discuss that collateral estoppel did
16 not apply, does not apply in the situation.

17 But the main issue is that there is
18 no evidence before Your Honor at this point regarding
19 the injury being willful and malicious.

20 You have a fact that there is
21 conviction of my client for Carnal Knowledge of a child
22 between 13 and 15 years of age. That's section 18.2-63
23 of the Virginia Code. Subsection A reads: If any
24 person carnally knows without the use of force a child
25 13 years of age or older but under 15 years of age.

1 Without use of force. That's the
2 statute. And if you look at the Plaintiff's Response to
3 Interrogatories, Mr. Sharman -- his client, plaintiff
4 through Mr. Sharman said that the only two acts upon
5 which he's relying --

6 MR. SHARMAN: Objection, Your Honor. I
7 don't believe we have those facts in evidence at this
8 time.

9 THE COURT: He's making his argument on his
10 Motion to Strike. I'll let him go forward in his
11 argument.

12 MR. SLAYTON: All I'm saying is that if you
13 look at those Response to Interrogatories the Plaintiff
14 said the only two acts that she's relying upon are the
15 two acts of Carnal Knowledge for which my client was
16 found guilty.

17 That's what they're relying upon in
18 this case today. And the law says that that was without
19 use of force.

20 Now, you and I both know that
21 Section 523-A-6 requires that proof beyond by a
22 preponderance of evidence be shown that the injury was
23 willful and malicious to Miss Lewis.

24 With respect to willfulness the
25 Supreme Court has held that a willful injury not just a

1 willful act is required, in re Eppert, Ap. Number
2 12-05034 -- I think that was a decision by Your Honor.

3 The Fourth Circuit has stated: The
4 question for a Court to decide is whether the Debtor
5 acted with substantial certainty that harm would result
6 or a subjective motive to cause harm.

7 So willfulness requires that the
8 Debtor commit an intentional tort, and the intentional
9 tort must be conduct substantially certain to result in
10 injury or be motivated by a desire to inflict injury.
11 There's been no evidence regarding that, Your Honor.

12 All we have is a strict liability
13 statute. With no mens rea required. So, to say, you
14 can't then just jump from that to say, oh, there's mens
15 rea because that issue hadn't been decided.

16 And then you have to find that
17 there was maliciousness. And in order for the Court to
18 find maliciousness, the Court has to find -- and I've
19 got to find my case here. Give me one second, Your
20 Honor -- requires an action without just cause or
21 excuse. And this is, again, from your Eppert Opinion.

22 And so if you can find that the
23 Debtor had a justification or excuse for committing the
24 tort, then maliciousness is not found. The only
25 evidence you have before you today is Mr. Long's

1 testimony that he didn't know what her age was. That's,
2 I think, a justification or excuse for committing the
3 tort.

4 And while as maybe distasteful it
5 is to come to that conclusion, you have to make your
6 decision based upon the evidence presented to you today.
7 At this point Mr. Sharman's rested. Consequently, the
8 evidence is insufficient for you to find that this debt
9 is non-dischargeable.

10 Regarding the collateral estoppel
11 issue, according to the Fourth Circuit in re Ansari, 113
12 F. 3rd 17, a Fourth Circuit case from 1977, in
13 determining the preclusive effect of a State Court
14 Judgment, the Federal Courts must give full faith and
15 credit to judicial proceedings and apply the forum
16 state's law of collateral estoppel, consequently,
17 Virginia's law on collateral estoppel.

18 And there is a three-part test that
19 you're aware of -- I've read another case that you
20 decided that did this -- the parties had -- and the two
21 proceedings must be the same, the factual issue or court
22 actually must have been litigated in the prior action
23 must have been essential to the prior judgment and the
24 prior action must have resulted in a valid final
25 judgment against the party sought.

1 The key here is number two. Right?
2 Was it actually litigated? And Mr. Sharman says you can
3 have a Default Judgment that is actually litigated.
4 And, yeah, I've read those cases, but those cases all
5 had evidence taken in them, like, an evidentiary hearing
6 on damages, which is not what happened based upon Mr.
7 Long's testimony, so the Judge asked him some questions
8 about why default shouldn't be entered. That's hardly
9 an evidentiary hearing.

10 That's saying, you know, were you
11 sick? Is that why you didn't file an Answer in 21 days?
12 Were you in the hospital? That's what the Judge was
13 asking. Why didn't you file an Answer in 21 days? Did
14 you have an excuse? He wasn't -- the Judge -- from what
15 I heard, there's no testimony before you today the Judge
16 was making factual questions about the underlying
17 Complaint.

18 He's just asking, why didn't you
19 file an Answer in 21 days? That is not an adjudication
20 of the matter. Subsequently, there is no collateral
21 estoppel, which means that Mr. Sharman has to put on
22 evidence today in order to carry the burden of proof.

23 Subsequently, Your Honor, I don't
24 believe that the Plaintiff has carried her burden of
25 proof and ask for the Judge to award Mr. Long Summary

1 Judgment.

2 MR. SHARMAN: Your Honor, as to the issue of
3 motions about collateral estoppel, I think to tell that
4 issue's been raised, one doesn't have to do a motion,
5 there was never an issue or any dispute whether or not
6 Mr. Long's knew this child's age. That wasn't -- it's
7 the first time I heard the dispute. It's the first time
8 you heard the dispute.

9 In the Request to Admit you have --
10 and the Responses to that you have really everything you
11 need to have to decide this case. It was a felony that
12 he pled guilty to. That is necessarily something that
13 is without cause. A felony.

14 He admitted that Crystal Lewis was
15 the victim of this felony. That's Response Number 12.
16 That obviates any excuse when he admits she's the
17 victim.

18 Virginia views Statutory Rape as
19 constructive force. The case that is consistently
20 cited, even today, is a 1938 case, I believe. I don't
21 have the citation because, again, I didn't -- I know the
22 name of it is Parsons versus Parker. I wasn't aware
23 that this issue was going to come up.

24 But Parsons versus Parker says that
25 Statutory Rape is and always has been viewed as forcible

1 whether or not consent was involved in an issue of
2 Statutory Rape and that Carnal Knowledge is Statutory
3 Rape.

4 There's a number of other cases in
5 Virginia that are built upon that, saying that force in
6 the sense of whether a prior crime can be used as an
7 accelerator or it can be an issue of whether force was
8 involved can be the constructive force of Statutory
9 Rape.

10 In re Holt, 310 Bankruptcy 675,
11 that's a Northern District of Texas Bankruptcy Court in
12 2004; it was a 14 year old girl in a Sexual Assault, and
13 that was found to be non-dischargeable. A touching in
14 in re Halverson, 226 Bankruptcy 22, that's Bankruptcy,
15 District of Minnesota, 1998.

16 In the case of in re Robert J.
17 Pettey, P-E-T-T-E-Y, 288 Bankruptcy 14, that's a
18 Massachusetts Bankruptcy Court, 2003 sanctions were
19 awarded against an attorney who had filed a Chapter 13
20 when knowing that the two creditors were two nieces who
21 had \$750,000 judgment against him for Sexual Assault.
22 And they said specifically that that came within the
23 definition of willful and malicious injury.

24 In the exhibits which you've
25 already received is a plea of guilty to a felony,

1 without cause, without excuse. His statement, he did
2 three years on that. You have his Plea Agreement that
3 he had no excuse. He did that crime.

4 The Promissory Note, Exhibit Number
5 6, in which he admitted in that Promissory Note that
6 this was an intentional tort that would be
7 non-dischargeable in bankruptcy. That's the exhibit
8 that's been admitted with no objection.

9 On Page 3 -- it lists it as Page 3
10 because that's the way the Court handwrote that in the
11 filings. That's Exhibit Number 6. And where it says:
12 Settlement of at law 2004 L-220, which is the Motion for
13 Judgment which is the Exhibit Number 4, it says:

14 The Debtor is executing this
15 Promissory Note in favor of the payee the full amount
16 sued for in the lawsuit between the Debtor and Payee
17 styled, CDL versus Clyde A. Long, Junior, Culpeper
18 County Circuit Court, 2004 L-220.

19 And the important part, for the
20 purpose of the Motion to Strike, etcetera is or Motion
21 for Summary Judgment, I believe is the way he phrased
22 it: This Promissory Notes represents settlement of the
23 Debtor's intentional torts against the Payee as
24 expressed in that suit.

25 And it is the parties understanding

1 and intention that this Promissory Note for settlement
2 of those intentional torts may not be discharged in any
3 future bankruptcy filed by the Debtor. And that's
4 signed by Clyde Long.

5 I don't think there's any serious
6 question or argument this is malicious against a 13 year
7 old girl. It was willful. He signed and admitted in a
8 document when he signed it, admitting that this was an
9 intentional tort and agreeing that it would not be
10 discharged in bankruptcy. I think we get past the
11 Defendant's Motion. Thank you.

12 MR. SLAYTON: Your Honor, if I may respond
13 to one item?

14 THE COURT: All right.

15 MR. SLAYTON: The issue of the Waiver of
16 Dischargeability has been raised by Mr. Sharman, and I'm
17 sure you're aware that those sorts of provisions have
18 been struck down by Bankruptcy Courts regarding
19 contracts provisions that say that the debt will survive
20 a bankruptcy discharge.

21 It's well established by numerous
22 courts that such pre-bankruptcy stipulations of
23 non-dischargeability, whether part of contracts, or
24 stipulated judgments are not enforceable by creditors.

25 I point you to in re Cole, 226 BR

1 647 which is a Ninth Circuit case; Lichtenstein versus
2 Barbanel, 161 Fed Appx. 461 out of the Sixth Circuit;
3 The Bank of China versus Wang, 275 F. 3rd 1173 out of
4 the Ninth Circuit; Klingman versus Levinson out of the
5 Seventh Circuit, 831 F. 2nd 1292. And there are lots
6 more.

7 The rationale for this policy is if
8 such a thing was allowed, then every contract would have
9 this waives discharge, which would basically gut the
10 entire bankruptcy process; consequently, such a
11 provision is unenforceable.

12 And Miss Lewis cannot rely upon
13 that provision to claim that this debt's not
14 dischargeable. And I may have said this was a Motion
15 for Summary Judgment; Motion to Strike, I hope you'll
16 take it as it's meant, basically to say the Plaintiff
17 hasn't carried their burden.

18 MR. SHARMAN: Your Honor, I wasn't bringing
19 up the issue of the Promissory Note as a waiver, just as
20 his admission.

21 THE COURT: All right. Well, you know, a
22 lot of good arguments raised and a lot to think about.
23 What I will do is I will need to take this under
24 advisement.

25 And I understand as with all these

1 cases that you want a prompt result; I'll do my best.

2 So the Court will take this matter under advisement.

3 MR. SLAYTON: Well, I still haven't -- I
4 have evidence if you're going to --

5 THE COURT: Okay.

6 MR. SLAYTON: Sorry to be the bearer of bad
7 news.

8 THE COURT: Okay.

9 MR. SLAYTON: But if the Judge -- if Your
10 Honor is going to say, okay, I'm -- you're going to take
11 my motion under advisement, then I have evidence that I
12 want to put on regarding Mr. Long's intent. We can take
13 a lunch break and come back at some point in time this
14 afternoon. It doesn't have to be -- whatever is up to
15 Your Honor. But I do have some evidence I'd like to put
16 on.

17 THE COURT: Okay. All right. Mr. Sharman,
18 I think I'm going to do that, take a break. I also have
19 some matters at 2:00; I don't know how long they'll go.

20 (Discussion held off the record.)

21 THE COURT: Let's do that. I'm going to
22 take a recess at this time, but the Lewis versus Long
23 matter will be recalled at 2:30.

24 * * * * *

25 THE COURT: All right. So gentlemen, we're

1 back. You have your remaining evidence, but the court
2 reporter would like to take a break. We're going do
3 that, a quick 10-minute recess, and we will be back.

4 (A brief recess was taken.)

5 THE CLERK: Your Honor, I believe we are
6 still on the trial in the case of Clyde Alexander Long,
7 Jr. and Latoya Lyniese Long 13-60044, Adversary
8 Proceeding, 13-06030.

9 THE COURT: All right.

10 MR. SHARMAN: Your Honor, I have some of the
11 citations. I had mentioned that there were cases
12 regarding constructive force, but I didn't have the
13 names. I had mentioned Parsons versus Parker, but I
14 didn't have the citation. So, during our break I was
15 able to get those.

16 Parsons versus Parker is 160
17 Virginia 810, and that's 816 S.E. 1, and that was a 1933
18 case, not 1938.

19 And then Martin versus
20 Commonwealth. There are two Martin versus Commonwealth.
21 And the published one is 272 Virginia 31, and the
22 particular page would be 35; and that's 630 S.E. 2nd
23 291. That's a 2006 case.

24 And that one is, as I mentioned,
25 saying that a Statutory Rape still as force; even though

1 it's constructive force, it is still considered force.
2 It cites the -- it affirms the unpublished case, Martin
3 versus Commonwealth, unpublished 05 VAP-UNP, 1966, 044;
4 that's a 2005 case.

5 And that said that for the purpose
6 of whether something is forcible or not, a Statutory
7 Rape and Carnal Knowledge is force even though it's
8 constructive force. And then they cite the published
9 case cited Lear versus Commonwealth, 195 Virginia 187,
10 and the particular page would be 193; and that's a 1953
11 case.

12 And that said: In Virginia
13 Statutory Rape whether or not, with consent or without,
14 is still considered rape as force. Thank you.

15 THE COURT: And now we have some evidence on
16 behalf of the Debtor.

17 MR. SLAYTON: Yes.

18 THE COURT: All right.

19 MR. SLAYTON: And just to clarify, Madam
20 Clerk, Miss Long is not a party to the adversary
21 proceeding. I just want to be clear on that. The
22 adversary proceeding only deals with Mr. Long.

23 THE COURT: Okay.

24 MR. SLAYTON: I call Clyde Long to the
25 stand.

1 THE CLERK: Your Honor, Mr. Long was
2 previously sworn in; is he still under oath?

3 THE COURT: Yes.

4 Mr. Long, you are still under oath.

5
6 CLYDE A. LONG, JR., was called as a witness,
7 and after being previously duly sworn, was examined and
8 testified as follows:

9
10 DIRECT EXAMINATION

11 BY MR. SLAYTON.

12 Q. Please state your name.

13 A. Clyde A. Long, Jr.

14 Q. And you are the Debtor in the Chapter 7
15 bankruptcy case along your wife, is that correct?

16 A. Yes.

17 Q. And you understand that you're here today because
18 Crystal Lewis filed an adversary proceeding to
19 collect -- of have the judgment that you agreed to
20 declared non-dischargeable, correct?

21 A. Yes.

22 Q. Can you tell the Court how you met Crystal.

23 A. I was -- I met Crystal -- I was hanging out with
24 two of my family members who was dating two sisters.
25 The two sisters was Crystal's mom and Crystal's aunt.

1 Q. And what happened on that day?

2 A. I came from Charlottesville, Virginia. I was
3 living up in this area. I was moving to Culpeper
4 eventually. And I was hanging out with the two family
5 members.

6 We went to an apartment which
7 was -- I found out later was Crystal's mom's apartment.
8 And we was hanging out, having drinks, and playing
9 cards.

10 Q. Was Crystal drinking at that time?

11 A. Yes.

12 Q. Was her mother there?

13 A. Yes.

14 Q. Did anybody ever tell you how old she was?

15 A. No.

16 Q. Did you ever ask?

17 A. No, I -- I just assumed because we was all having
18 alcohol and playing cards at a late hour that everybody
19 was --

20 Q. Of age?

21 A. Right.

22 Q. And --

23 MR. SHARMAN: Excuse me. I just want to
24 make a continuing objection. I believe his --
25 the judgment that has been introduced does

1 prohibit him from going back and restating the
2 facts or denying those facts or reformulating
3 them.

4 I believe that the Default Judgment
5 completely takes care of all of those issues of
6 fact, which he cannot now come back and reargue.

7 I think one local case -- or a
8 Virginia case on that issue is Trout versus
9 Trout, a Chapter 7 case at 0570246, the Roanoke
10 Division of the Western District of Virginia. I
11 just want to mention that as a continuing
12 objection, ma'am.

13 MR. SLAYTON: Can he continue answering the
14 question?

15 THE COURT: Yes. Go ahead.

16 MR. SLAYTON: Thank you, ma'am.

17 BY MR. SLAYTON:

18 Q. So there did come a time when you learned that
19 she was under age?

20 A. Yes.

21 Q. And you pled guilty to the Statutory Rape Statute
22 that I read out earlier in the day?

23 A. Yes.

24 Q. And did you go to jail for that?

25 A. I did.

1 Q. And how long did you spend in jail?

2 A. Three years.

3 Q. And was that the whole sentence, or did you have
4 a longer sentence and some of it was suspended?

5 A. It was suspended; I had a longer sentence.

6 Q. Was it ten years with seven suspended; so you
7 served three?

8 A. Yes.

9 Q. Does that sound right?

10 A. Yes.

11 Q. Did you write any letters to Crystal while you
12 were in jail?

13 A. I did.

14 MR. SLAYTON: Do you want a copy before I
15 admit them into evidence, Your Honor?

16 THE COURT: No.

17 MR. SLAYTON: Okay.

18 BY MR. SLAYTON:

19 Q. Are these some of the letters that you wrote to
20 Crystal while you were in jail?

21 MR. SHARMAN: We have no objection.

22 THE COURT: Okay. Thank you, Mr. Sharman.

23 THE WITNESS: Yes.

24 MR. SLAYTON: I offer these as Exhibit A.

25 Those have been filed with the Court this

1 morning.

2 THE COURT: All right. And there's no
3 objection to their admissibility?

4 MR. SHARMAN: No.

5 THE COURT: All right. So they'll be
6 admitted.

7 (Defendant's Exhibit A, letters, were
8 admitted.)

9 MR. SLAYTON: Thank you.

10 BY MR. SLAYTON:

11 Q. Why did you write these letters?

12 MR. SHARMAN: Objection. Relevance.

13 MR. SLAYTON: I think his intent is all
14 relevant. That's what we're arguing over here,
15 is what was his intent. And I think letters
16 written at the time or soon thereafter are
17 relevant to determining what was in his head.

18 THE COURT: All right. Mr. Sharman?

19 MR. SHARMAN: That may be what they're
20 arguing, but I don't think that's relevant. I
21 mean, as he just has said, he pled guilty to a
22 felony; that then makes this res judicata. He
23 admitted it. That's that. It doesn't matter.

24 MR. SLAYTON: Your Honor, I don't think that
25 the fact that he pled guilty to a felony is the

1 fact that decides your question. Right? The
2 question of the crime does not mean that all of a
3 sudden you are stripped of your jurisdiction to
4 look at the facts.

5 I mean, you are a court of equity
6 here. You have the right to, as with all
7 Bankruptcy Judges, to look beyond what piece of
8 paper somebody signed. And we'll get to that;
9 I'm going to ask my client about what happened in
10 that meeting.

11 And so I don't think that there is
12 a collateral estoppel or res judicata upon you to
13 decide whether this was a willful and malicious
14 injury.

15 THE COURT: All right. Just help me out.
16 How is the Debtor's answer to the question that
17 you posed of a consequence to a fact that I am
18 going to need to determine in this adversary
19 proceeding?

20 MR. SLAYTON: Because you need to be able to
21 decide whether his intent was -- whether he was
22 willful and malicious.

23 And in your own case of Eppert you
24 say that if there is an excuse, a reason for his
25 behavior, then that takes away the maliciousness

1 of it. And that's what we're getting at; what is
2 his excuse? What is his reason? And I think you
3 have the right to decide that.

4 THE COURT: All right. Go ahead.

5 MR. SLAYTON: Thank you.

6 BY MR. SLAYTON:

7 Q. So why did you write these letters?

8 A. I wrote them because I -- at the time -- you
9 know, during the different times that I wrote and
10 corresponded and she corresponded back I just wanted to
11 know how she was doing and how she was feeling.

12 I wanted to make sure that her and
13 everybody that we hung out with was all okay during
14 those times of my incarceration.

15 THE COURT: I didn't catch the last
16 statement.

17 THE WITNESS: That her and her family and
18 friends that was all -- that we associated
19 our-self with, I wanted to make sure everybody
20 was okay.

21 BY MR. SLAYTON:

22 Q. What happened when you got out of jail, regarding
23 this matter?

24 MR. SHARMAN: Foundation. Regarding the
25 matter that he was in jail for when he did this

1 or regarding when he --

2 MR. SLAYTON: I'll withdraw -- I'll rephrase
3 the question, Your Honor.

4 BY MR. SLAYTON:

5 Q. Did there come a time where you were sued by Mr.
6 Sharman's client for civil damages after you got out of
7 jail?

8 A. Yes.

9 Q. How soon after you got out of jail?

10 A. Three days.

11 MR. SHARMAN: Objection. We'd restate the
12 same one that he had that we had before,
13 collateral estoppel and res judicata as to that
14 question as well.

15 THE COURT: All right.

16 BY MR. SLAYTON:

17 Q. So you were served with the civil papers three
18 days after you got out of jail?

19 A. I was served with the papers while I was
20 incarcerated that I had to appear in court three days
21 after I was released.

22 Q. And so what happened at that court hearing?

23 A. A bunch of confusion. I really just remember the
24 stating of facts that I was incarcerated because of
25 having sex with Crystal and that I was liable to pay her

1 damages.

2 Q. Was this the Default Judgment hearing that you
3 spoke about earlier today, or was this a separate
4 hearing?

5 A. I believe it was a separate hearing.

6 Q. Okay. Sometime later did you go to the Default
7 Jump Hearing?

8 A. I did.

9 Q. And what happened there?

10 A. A bunch of confusion. I -- you know, I didn't
11 have a lawyer, so I didn't know what the -- they was
12 just talking a lot of different stuff, and I was just
13 letting them know that I didn't have the money to pay.

14 Q. And how long after you were released did this
15 hearing on Summary Judgment or hearing on Default
16 judgment occur? Weeks? Months? Years?

17 A. A couple months.

18 Q. A couple months. And were you working at the
19 time?

20 A. I was. I was -- at first I was working, and then
21 I wasn't working. Up to the point until I stopped
22 working I was paying an agreement that we did in his
23 office (indicating) that I --

24 Q. We'll get that in a second. I meant before the
25 Motion for Default Judgment. Between the time you got

1 out of jail on Motion for Default Judgment did you find
2 work?

3 A. Yes, on and off, just being temporary work. I
4 was working for a temp company.

5 Q. And then sometime after the Default Judgment was
6 entered you were in a meeting in Mr. Sharman's office,
7 correct?

8 A. Correct.

9 Q. Tell the Judge about that meeting.

10 A. The meeting came about with -- that they said
11 that this money had to be paid. My sister -- I had a
12 older sister that went with me named Aimee, myself and
13 with Michael Sharman, and that was it, at the meeting in
14 his office. He showed us some documentation of
15 newspaper articles of other cases that he had had and
16 won.

17 And on that, after reading the
18 little bit of those articles, or the front cover, we --
19 he had set up probably about a stack of papers
20 (indicating) for me to sign for -- to pay Crystal a
21 certain amount of money per month.

22 Q. And you signed that document, right?

23 A. Yeah.

24 Q. That was admitted into evidence already as the
25 Agreement, correct?

1 A. Yes.

2 Q. Did you read that before you signed it?

3 A. It was a lot of paperwork. I looked through some
4 of it and signed.

5 Q. Why did you sign it?

6 A. Basically, you know, the outcome of everybody
7 else's cases, he was saying that he will get the money
8 one way or another. And I just wanted to do away with
9 the frustration; I just wanted to try to get this stuff
10 behind me and move forward.

11 Q. And that Agreement required that you make
12 payments, correct?

13 A. Yes.

14 Q. Okay. And did you ever make any of those
15 payments?

16 A. I made a lot of payments.

17 Q. Okay. How many years? How long did you make
18 those payments?

19 A. A little bit over two years, probably going on
20 three years. I lost my job for Pepsi and I was no
21 longer able to pay that amount of money.

22 Q. Did there come a time when you were paying child
23 support as well?

24 A. I was paying Child Support as well. I was paying
25 child support during the time that I was paying the

1 moneys; it was -- both of them was separately.

2 Q. So you were paying this Judgment and Child
3 Support?

4 A. Correct.

5 MR. SHARMAN: We object as to relevance.

6 THE COURT: Mr. Slayton?

7 MR. SLAYTON: Again, I think it goes to
8 intent, to what's in his mind. And the fact is
9 that he was paying Child Support for Crystal's --
10 for their daughter, right?

11 And I think that that goes to,
12 again, what's in his head. And that's the issue
13 that you have to decide today, based upon
14 circumstantial evidence. And this is some of the
15 circumstantial evidence that I think you should
16 consider.

17 THE COURT: I'll let it in. I'm not sure at
18 this point the relevance; so I'll simply take
19 that under advisement.

20 MR. SLAYTON: Those are all the questions I
21 have.

22

23

24

25

CROSS EXAMINATION

BY MR. SHARMAN:

Q. Mr. Long, those letters that you wrote, you wrote those while you were in jail on that Domestic Assault that you mentioned earlier, correct?

A. I wasn't sure when I wrote the letters. I don't think I wrote it -- I wrote it after I was incarcerated.

Q. Right. But after you were incarcerated on the Domestic Assault, not when you were incarcerated in prison for what you did against Crystal, correct?

A. I'm not sure.

Q. Did you review with your counsel the Request for Production that we had sent to y'all in your -- the Discovery Request that you had made to us?

A. I'm not sure what you're asking.

Q. Okay. Were you aware that your attorney had asked us to produce to them documents?

A. Okay.

Q. Were you?

A. Yes.

Q. And did you review our Response to that?

A. Yes.

Q. And in that did you notice that as part of those Responses we sent you the -- we sent the envelopes -- copies of the envelopes that you had sent these letters

1 in?

2 A. No, I wasn't aware of that. I didn't see those.

3 Q. Did you look at the Response to Requests?

4 A. We -- they asked me questions.

5 Q. And all the envelopes were from the Albamarle
6 Charlottesville Regional Jail, correct?

7 A. If that's what you have; I'm not sure what you
8 have.

9 Q. Do you have any distinct recollection that any of
10 the letters that you tendered as Exhibit A came from
11 anything other than the Albamarle Charlottesville
12 Regional Jail?

13 A. I wrote some letters when I was incarcerated in
14 the Culpeper County Jail that went to the -- I believe
15 at the time was the Foster Parent, Mrs. Jackson.

16 Q. And those would not be these letters, correct
17 (indicating)?

18 A. Can I --

19 THE COURT: What was the answer?

20 THE WITNESS: I told him, if I could see it
21 again. Because sometimes I was writing I was
22 incarcerated in the Culpeper County Jail where I
23 was writing letters to the Foster -- to where she
24 was staying at, the Foster -- when I found out it
25 was the Foster Parent.

1 THE COURT: All right.

2 BY MR. SHARMAN:

3 Q. She was not in Foster Care when you wrote from
4 Albamarle Charlottesville, correct?

5 A. I do not know.

6 Q. And her mom's name, the sister, the relative that
7 you mentioned that you were drinking with her, she goes
8 by Addie, right?

9 A. That was Crystal's mother.

10 MR. SHARMAN: Right. Your Honor, I believe
11 counsel has exhibits as to provide one set for
12 the witness copies?

13 MR. SLAYTON: Yeah, there's one up there --
14 or it's here. I took it back from him because I
15 didn't think he would need it anymore. There you
16 go.

17 MR. SHARMAN: If I may approach, Your Honor?

18 THE COURT: Yes.

19 BY MR. SHARMAN:

20 Q. In that first one, that's March 23rd, 2000, that
21 is dated, correct?

22 THE COURT: What are we looking at?

23 MR. SHARMAN: Exhibit A, ma'am, Defendant's
24 Exhibit A.

25 THE COURT: All right.

1 BY MR. SHARMAN:

2 Q. That's your handwriting, correct?

3 A. Um-hum.

4 Q. And that's your letter to Crystal, correct?

5 A. Correct.

6 Q. Do you see it -- well, let me also -- on March
7 23rd, 2000, what charge were you doing time for, on
8 March 23rd, 2000?

9 A. Assault and Battery.

10 Q. Okay. And Crystal was not yet in Foster Care,
11 correct?

12 A. I don't know whether she was or wasn't at that
13 time.

14 Q. If you'd look on the fifth line there, you said:
15 Are you okay? Are you going to school and to class? Do
16 you see that?

17 A. On the fifth line. Yes, I see that.

18 Q. And didn't you say you didn't know she was going
19 to school?

20 A. Was doing home-school.

21 Q. Right.

22 A. I mentioned that earlier.

23 Q. And here you asked her: Are you going to school
24 and to class, right?

25 A. Yeah, classes, meaning the classes that suppose

1 to have been home-schooled.

2 Q. And see toward the bottom, it says: Tell Addie
3 and Shanette they got a letter too?

4 A. It was in the same envelope.

5 Q. Okay. And Addie is her mother, correct?

6 A. Correct.

7 Q. And who is Shanette?

8 A. Shanette is a family member of mine.

9 Q. And Addie was dating your younger cousin,
10 correct?

11 A. Addie was dating my uncle.

12 Q. All right. And Addie has two children by two
13 different brothers, right?

14 A. Which is now my uncles.

15 Q. Right. And your uncle is how old?

16 A. My uncle is the same age as I am.

17 Q. Okay. And at that time Addie was quite a bit
18 older, right?

19 A. She was -- I guess she was an adult.

20 Q. On the next letter I think it says: Only for you
21 to read, at the top. And we're still on Defendant's
22 Exhibit A, ma'am. Do you see the one that I'm
23 referencing: Only for you to read (indicating)?

24 A. Um-hum.

25 Q. ET Phone Home, right?

1 A. Um-hum.

2 Q. Toward the middle of it where you say: Just keep
3 thinking positive, keep school on your mind?

4 A. Right. Schooling was something that was
5 important to myself, and so I would encourage anybody to
6 do better, to keep moving forward.

7 Q. Okay. As you look down, see where it says: I
8 tried to put you and Addie down -- and you're still
9 talking about her mother, right?

10 A. Correct.

11 Q. -- as visitors -- and you are talking about when
12 you were incarcerated, right?

13 A. Correct.

14 Q. -- but they only let five visitors and got to be
15 over 18?

16 A. Correct.

17 Q. Which Crystal wasn't, right?

18 A. Correct.

19 Q. And you knew that?

20 A. At the time, no, but I was just putting down -- I
21 was putting what the jail said for visitors.

22 Q. Just in case maybe she might be bringing in
23 Addie? You're only talking about Addie and her, right?

24 A. Addie and, like I said, there was other family
25 members and kids that we had responded to. You know,

1 this is -- this is a letter -- you know, sometimes I
2 don't express my words down like I want to.

3 Q. And you also want to be careful what you're
4 saying because you might be writing something
5 prosecutorial, right? Well, look at the next page where
6 you say: Love you, Uncle Clyde. Right?

7 A. Love Uncle Clyde, I say that to everybody.
8 Whether they're my family member or not, they all call
9 me Uncle Clyde.

10 Q. Right. Do you also tell them what you wrote
11 here: Be careful what you send; they go into mail?

12 A. Yeah. It's no surprise when you are incarcerated
13 they read your mail, you know, so it's no surprise about
14 that. So -- of course, you don't want to say
15 prerogative information or anything like that or cursing
16 or something like that that they could see and say as a
17 complaint.

18 Q. On the next page it just begins with: Crystal.
19 Do you see that?

20 A. Um-hum.

21 Q. And toward the last third of it, it says: Is the
22 B-blank all right; do you see that?

23 A. Yeah, I see it. But --

24 Q. Is the baby all right, right? And you left it
25 blank because you knew you had been doing a chargeable

1 offense?

2 A. I don't know if that was suppose to be the baby
3 or if that's suppose to be -- that might have been a
4 word that I didn't want to curse and I not use the B
5 word.

6 Q. Looking around at the context, it immediately is
7 followed with: Do you even think about me anymore?
8 Right? It's the baby, isn't it?

9 A. She didn't -- again, I don't know when the date
10 was of this letter and whether I was talking about the
11 baby or talking about somebody that could have been a B
12 at that time and I was just asking were they all right.

13 Q. Um-hum.

14 A. I'm not sure.

15 Q. Well, you're still incarcerated, because just a
16 little bit above you say: I might be out before the
17 first of the month. Right? You're still incarcerated?

18 A. Where is that?

19 Q. My lawyer trying to get me out early, I might be
20 out before the first of the month. And I don't want o
21 come over if you're dating anyone.

22 A. Yes.

23 Q. Right. So the B-blank is the baby?

24 A. Again, I wouldn't know the date that I wrote
25 this -- if it had the date that I had wrote it, then I

1 probably could say that it could possibly -- well, or
2 where it came from, if I sent it from the Albamarle
3 County Jail or if I sent it to -- from the Culpeper
4 County Jail. Again, I told you that I wrote some
5 letters from the Culpeper County jail.

6 Q. Um-hum. Toward the end of this Exhibit A there's
7 a number of numbered pages followed by questions?

8 A. I don't have that.

9 Q. Toward the end?

10 A. Yes, I have that.

11 Q. Okay. Crystal, please answer the question mark,
12 mail back. Right? Are you on that?

13 A. Um-hum.

14 Q. Are you and the baby all right?

15 A. I see that.

16 Q. And then on the next page --

17 THE COURT: Mr. Long, if you could just
18 speak up a little bit louder when you answer the
19 questions.

20 THE WITNESS: Yes. Sure. I see what
21 you're -- the question.

22 BY MR. SHARMAN:

23 Q. Question Number 1: Are you and the baby all
24 right? All right. And so you're incarcerated, right?
25 This one, while you're incarcerated?

1 A. Correct.

2 Q. And you're asking her if the baby is all right?

3 A. The baby -- she used to baby-sit other family
4 members.

5 Q. Oh.

6 A. So I'm asking about the baby -- it could have
7 been one of the family member baby that she was
8 baby-sitting.

9 Q. How about Number 10: Have you gone to the
10 doctor? What was that about?

11 A. In a letter that she responded to me she said she
12 was sick.

13 Q. Do you happen to have that?

14 A. No, I don't have none of those letters. I
15 discarded those.

16 Q. When you're saying in the immediate next
17 question, Number 11: How do you feel about everything,
18 what everything are you talking about?

19 A. Again, it was correspondence of letters, you
20 know, it could have been from another letter. I'm not
21 sure. Everything probably just mean how's everything
22 going.

23 Q. And then Number 12: Does your dad know yet?

24 A. Again, it could have been something about
25 something else and not particular about --

1 Q. Right. And then immediately followed with a big:
2 I love, I love you, I love you, X0, X0, X0?

3 A. Um-hum.

4 Q. Okay. You were talking about the baby that you
5 knew she was carrying at that time, right?

6 MR. SLAYTON: Objection, Your Honor. Asked
7 and answered. He's asked the question four
8 times, and my client has answered four times it
9 could that, it could be something else. We need
10 to move on from that.

11 THE COURT: Mr. Sharman?

12 MR. SHARMAN: I disagree. I'm having an
13 evasive witness; I'm allowed to --

14 THE COURT: I sustain the objection.

15 BY MR. SHARMAN:

16 Q. Now, in the Request to Produce packet was another
17 letter --

18 MR. SHARMAN: If I might approach, Your
19 Honor?

20 THE COURT: All right.

21 THE COURT: Is that in evidence?

22 MR. SHARMAN: No, it isn't. It was in that
23 Request for Production packet that we sent. It's
24 not in their Exhibit A packet.

25 MR. SLAYTON: Your Honor, the document's not

1 admitted into evidence, and I'm not sure --

2 THE COURT: Have you seen it?

3 MR. SLAYTON: Yeah, I've seen it.

4 THE COURT: And I take it that Mr. Sharman
5 wants to admit this into evidence?

6 MR. SLAYTON: I don't know.

7 MR. SHARMAN: I would ask to, Your Honor.

8 THE COURT: Are you going to object?

9 Wait. Excuse me, Mr. Long. Mr.
10 Long, before you read that, that's not in
11 evidence yet; you've not been instructed to read
12 it yet.

13 THE WITNESS: Oh, okay.

14 THE COURT: Okay. So you're going to --

15 MR. SHARMAN: Yes, it's what I had included
16 in the packet Request for Production; it's just
17 not in Exhibit A.

18 THE COURT: Well, how are you going to get
19 this in? Because I thought you already had your
20 exhibits admitted.

21 MR. SHARMAN: I had. But I'm now on
22 impeachment. Rule 607 says I get to impeach even
23 our own witness, and he's on their case. And I
24 think there's matters within that that's
25 definitely impeachable.

1 THE COURT: So how is it you can admit this
2 exhibit at this juncture?

3 MR. SHARMAN: Well, I disclosed to them
4 Request to Produce and there's no deadline on
5 when we submit exhibits.

6 THE COURT: In this particular case there
7 was not apparently.

8 All right. Mr. Slayton, are you
9 familiar with this document?

10 MR. SLAYTON: Yeah, I'm familiar with the
11 document, Your Honor. I got the e-mail that
12 asked for us to submit a witness list and exhibit
13 list; I noticed that it was copied to Mr.
14 Sharman.

15 It was Friday afternoon. I called
16 Miss Okes and said, I wouldn't be able to do it
17 but I would be able to do it today, and I did do
18 it today. Subsequently, I -- I mean, I'll leave
19 it up to you.

20 THE COURT: Do you have any objection to
21 that document?

22 MR. SLAYTON: No. I mean, that's an
23 original document and my client wrote it. But,
24 you know, it wasn't disclosed as far as being --
25 but that's because of the late notice. So I'll

1 leave it up to you. I'm just letting you know,
2 it wasn't --

3 THE COURT: So you don't have any objection
4 to its admissibility at this juncture?

5 MR. SLAYTON: Yeah.

6 THE COURT: All right. You may admit it.

7 MR. SHARMAN: Does the Court wish to mark it
8 at this point?

9 THE COURT: Why don't you go ahead and let
10 me know what you want, whether you want it
11 admitted in.

12 MR. SHARMAN: I would want it admitted as
13 Plaintiff's Exhibit 10, I believe.

14 THE COURT: All right. And this is a
15 document that the Debtor has, in fact, drafted?

16 MR. SLAYTON: Yes, he wrote it.

17 THE COURT: It is his letter. Okay. We
18 will go ahead then and take and mark it as
19 Plaintiff's Exhibit 10?

20 THE CLERK: Correct.

21 THE COURT: At the conclusion of our trial,
22 of course, anything that's been provided as paper
23 will need to be filed electronically with the
24 Court.

25 MR. SHARMAN: That will be fine, ma'am. I

1 don't think I got the e-mail that he's talking
2 about. I had got an earlier e-mail which said,
3 are you going to re-file -- or do you have
4 anything to pre-file? I said, we're working on
5 that exhibit list now.

6 I then got an e-mail copied to all
7 of us from Mr. Slayton. He said he wasn't
8 intending to; we didn't have a cut-off.

9 THE COURT: All right. I understand.

10 MR. SHARMAN: Okay.

11 THE COURT: The question is --

12 MR. SHARMAN: I never want to violate
13 whatever a Court's intent is even if we don't
14 have an express ruling.

15 THE COURT: All right. I just wanted to
16 make it clear that these papers that were brought
17 to Court will be returned to you to then submit
18 electronically.

19 MR. SHARMAN: So we would submit
20 electronically all ten of the exhibits?

21 THE COURT: Absolutely.

22 MR. SHARMAN: Yes, ma'am.

23 BY MR. SHARMAN:

24 Q. So, Mr. Long, do you see that is on Exhibit 10,
25 that's your handwriting, correct?

1 A. All except for the left-hand corner up here.

2 Q. Which is?

3 A. It has some numbers and a date; that's not my
4 handwriting.

5 Q. All right. Okay. Where it's -- the exhibit
6 identification is not your handwriting, but the rest of
7 it is, correct?

8 A. Correct.

9 Q. And look on the back side too, because it's a
10 two-side one sheet, right?

11 A. Correct.

12 Q. And that's all your handwriting, correct?

13 A. Yes.

14 Q. And at the top it says: Do good in school,
15 right?

16 A. Correct.

17 Q. And then on the back, toward the bottom, it says:
18 Crystal, I am keeping my -- what -- in unless?

19 A. I am keeping my -- use the bathroom or shower,
20 yes, I see that. I see what you're talking about. I am
21 looking --

22 Q. I'm keeping my M-M-M-M in unless I have to use
23 the bathroom or shower, right?

24 A. Correct. I see that.

25 Q. Okay. And so you're apparently using MMMM

1 instead of writing out a word; does that sound correct?

2 A. Correct.

3 Q. And then immediately after that: You make sure
4 nothing go in your mouth, hand, ass, pee, blank, blank,
5 blank, blank or anything else; don't cheat, right?

6 A. Correct.

7 Q. What were you talking about?

8 A. At that time -- I think this was one of the
9 letters I had told you I wrote from the Culpeper Jail.
10 This was after finding out that, you know, she had had
11 the baby and stuff. And I wanted to make sure that we
12 have a relationship after.

13 Q. Are you telling her right there: No excuse.
14 Right? No excuse. Don't cheat. Right? No excuse.
15 And then you immediately say, tell Addie -- right?

16 A. Um-hum.

17 Q. Her mom?

18 A. Um-hum.

19 Q. -- and everyone I said to say Happy Easter,
20 right?

21 A. Right. Again, that was probably while I was
22 incarcerated. I was at the Culpeper County Jail for a
23 while.

24 Q. In April of 2010 you were in the Albamarle
25 Charlottesville Regional Jail, right?

1 A. April 2010 I wasn't incarcerated.

2 Q. Were you at 1600 Avon Street, extended,
3 Charlottesville, Virginia, which is otherwise known as
4 the Albamarle Charlottesville Regional Jail?

5 A. I was there at one time.

6 Q. April 5th, 2000?

7 A. You said 2010.

8 Q. I'm sorry. I apologize. 2000; you were in the
9 jail then?

10 A. Correct. I know that she got a blank envelope,
11 but no letter in it. There's no date on this; so I'm
12 not sure what came from what envelope.

13 Q. The blank one is when you asked her to write you
14 back and you sent her a blank envelope and referred to
15 that one of letters in Exhibit A

16 A. Okay. I'm not sure -- like I said, I'm not sure
17 which letter was in which envelope.

18 Q. Of all the envelopes that we have, for all the
19 letters that we responded to with Requests produced, all
20 of them were in the year 2000, correct? And all of them
21 from you came from the Albamarle Regional Jail, right?

22 A. So you're missing some letters that didn't come
23 from the Culpeper County Jail.

24 Q. What I'm saying is, all the letters that were
25 tendered to you (indicating) that are in Exhibit A

1 (indicating) came in 2000 -- in the year 2000, the
2 spring of 2000, and it came from the Albamarle County
3 Regional Jail, right?

4 A. I don't know because the dates are not on them,
5 so I don't know if they came out of the envelope that
6 you have. That's what I'm saying. I wrote from both
7 jails.

8 Q. Did you produce these letters to your counsel, or
9 did we?

10 A. You did.

11 MR. SLAYTON: My client has answered the
12 question regarding the letters, and I think it's
13 clear that since the envelopes aren't attached to
14 the letters -- and my client pointed this out --
15 there's no way to match them up. They're
16 separate. And so who knows what letters came
17 from what envelopes?

18 THE COURT: Mr. Sharman, what is the purpose
19 of this line of questioning?

20 MR. SHARMAN: One, attack his credibility.
21 He said he really doesn't know how old she was or
22 what he was doing time for, whether the baby was
23 born or not.

24 And I think this letter
25 particularly, which was not made part of Exhibit

1 A, even though it was tendered to them, in which
2 he's telling her not to let anyone else fool
3 around with her and the fact that he was doing
4 that before he was ever charged, way before he
5 had told the Court earlier today that he didn't
6 know how old she was until he got the Support
7 Petition. So --

8 THE COURT: So how is this of a consequence
9 to an element that I need to find in this case?

10 MR. SHARMAN: Well, Your Honor, if you do
11 think intent is an issue, which I, frankly,
12 don't, but if you do, I think the fact that he's
13 intending to cover up -- he had mentioned about
14 tell -- don't let -- be careful what you're
15 putting in here, for your eyes only, I think
16 that's fairly important.

17 MR. SLAYTON: Your Honor, I would say the
18 letters speak for themselves. You're going to
19 have an opportunity after the hearing is over
20 today to read them and draw those conclusions
21 yourself. I don't think we need to have Mr.
22 Sharman reiterate those to you.

23 THE COURT: Mr. Sharman, I think I'm going
24 to need you to pull this -- to help me to find
25 that this line of questioning is necessary for my

1 purposes in order to find one of the elements
2 that is necessary for you to prove in your case.

3 Otherwise, it appears as if this
4 might be a little bit unnecessary, perhaps even
5 bordering on a waste of time. So I need to kind
6 of figure that out and I ask for your help with
7 that.

8 MR. SHARMAN: In that Trout versus Trout
9 case that I had mentioned earlier, the Chapter 7
10 out of the Roanoke Division, on Page 4 of that
11 Opinion it mentions: This Court's required to
12 give full faith and credit to judicial
13 proceedings in state courts, which has been my
14 assertion throughout. I don't think his intent
15 is relevant. I don't think any of that is
16 relevant.

17 The Court did not -- the Court
18 sustained counsel's objections on that. The
19 Court said those were -- that his Mr. Long's
20 intent is relevant.

21 I don't think it is, but if his
22 intent is relevant, then what he knew of her age
23 at what time would be.

24 I don't think we really need to do
25 that; definitely in the terms of saying a time,

1 that's why I said an hour, because looking at all
2 these letters, looking at the dates of the
3 envelopes that were attached.

4 Because my last question in which
5 counsel objected was: Did you provide these
6 letters, or did we?

7 And to proffer, we provided these
8 letters in our Request to Produce with the
9 envelopes and dates attached, all of which were
10 in the year 2000, in that spring, way before this
11 baby was born.

12 So if intent's an issue, then I
13 should be able to ask these. I don't think
14 intent's an issue; I think we have res judicata.
15 I think you do have to give full faith and
16 credit. But there we are, Your Honor.

17 THE COURT: All right. You may proceed with
18 your questioning.

19 BY MR. SHARMAN:

20 Q. So the question I had asked is: Did you produce
21 these letters to your counsel, or did your counsel
22 receive these letters from us in response to our Request
23 to Produce?

24 A. We received the letters from you.

25 Q. And you received also all the envelopes

1 (indicating) with the dates and the addresses that it
2 came from from you, correct?

3 A. I did not receive or see any envelopes. I just
4 seen the letters.

5 MR. SLAYTON: Your Honor, if I may proffer,
6 I showed my client the letters. The envelopes
7 when they came, when I saw them were not attached
8 to each letter; they came as a group at the end.

9 So I had no idea what envelopes
10 went to what letters, and I didn't think that was
11 relevant for my client to spend his time looking
12 at because we had no idea. So I had him focus on
13 the letters.

14 MR. SHARMAN: Your Honor, if I might, I
15 believe I had given the witness the exhibit -- or
16 the witness packet for our exhibits. I don't
17 know if they went back to counsel table or not,
18 but if I might have Exhibit 9?.

19 MR. SLAYTON: I think this is the one you
20 handed --

21 MR. SHARMAN: Thank you.

22 MR. SLAYTON: Is that the one you were
23 looking for?

24 MR. SHARMAN: Your Honor, I hate to overload
25 the exhibit, but since we're doing it

1 electronically, that might not be a problem. I'd
2 like to offer our -- the Defendant's Response
3 to -- or our response to Defendant's First
4 Request for Production of Documents to Plaintiff
5 which has those envelopes attached that I
6 mentioned.

7 THE COURT: What is that?

8 MR. SHARMAN: It's our Response to the
9 Request for Production that they had asked for
10 which tendered to them the letters that he's
11 mentioned (indicating), the envelopes that
12 counsel's seen (indicating), and it has all the
13 envelopes of the letters enclosed attached.

14 THE COURT: Mr. Slayton?

15 MR. SLAYTON: Can I take a look at what
16 he's -- yeah, I mean, I don't have an objection.
17 We've seen all these things. They're all
18 envelopes in my client's hand. But the dates, I
19 don't know what dates they are.

20 THE COURT: So you don't have any objection
21 to at this juncture Mr. Sharman now admitting
22 into evidence these documents that were submitted
23 as for Request For Production.

24 MR. SLAYTON: Everything else that packet is
25 already in evidence. So there's nothing in there

1 that -- I mean, except for these envelopes which
2 Mr. Sharman believes are important. And they
3 were written by my client's hand. So for their
4 value, for whatever weight you want to give them,
5 look at them.

6 MR. SHARMAN: I don't mind submitting just
7 envelopes. I just wanted for the integrity of
8 the document itself, if that's an issue, to
9 tender in that.

10 But these are the envelope, and I
11 believe we're in agreement to that, that were
12 within the Request to Produce.

13 THE COURT: So what is your request, Mr.
14 Sharman?

15 MR. SHARMAN: We'd offer in the original
16 envelopes, Your Honor.

17 MR. SLAYTON: No objection.

18 THE COURT: All right. There's been no
19 objection. They'll be admitted.

20 MR. SHARMAN: I believe that's 11.

21 THE CLERK: Correct.

22 (Plaintiff's Exhibit Number 11, envelopes,
23 were admitted.)

24 THE COURT: All right. Mr. Sharman, do you
25 have further questions?

1 MR. SHARMAN: Yes, Your Honor, just when he
2 gets those back.

3 BY MR. SHARMAN:

4 Q. And each of those is in your handwriting, and the
5 art that's on them is what you drew, correct?

6 THE COURT: Mr. Long is looking at the
7 original envelopes, is that correct?

8 MR. SHARMAN: Yes, ma'am.

9 THE COURT: Just been admitted as
10 Plaintiff's Exhibit 11, is that correct?

11 MR. SHARMAN: Yes, ma'am. Thank you.

12 THE WITNESS: These are the original
13 envelopes, but the drawings on here I did not
14 draw.

15 BY MR. SHARMAN:

16 Q. Which ones didn't you draw?

17 A. None of them. The handwriting is mines. Except
18 for this is not mine (indicating).

19 Q. What is the this that isn't yours?

20 A. This is not my handwriting (indicating). What's
21 on the back is my handwriting, so --

22 Q. Read what you're saying is this?

23 A. It says: Behind every storm there's a rainbow,
24 but that's not my handwriting. And then these pictures
25 is not my drawings. When we incarcerated, people that

1 does have drawing and talent, they draw stuff or sell
2 you an envelope or something.

3 Q. And you had asked -- that's the art that went out
4 with your envelope to Crystal, correct?

5 A. Correct.

6 Q. All right. And it shows that you were at the
7 Albamarle Regional Charlottesville Jail, correct?

8 A. Correct.

9 MR. SLAYTON: Your Honor, at this point the
10 letters speak for themselves, the envelopes. I
11 don't know why we need to go through and discuss
12 what's on each envelope. He's admitted it's his
13 handwriting. He submitted those into evidence;
14 you can look at them when the time is
15 appropriate.

16 THE COURT: Mr. Sharman, we need to tie this
17 to what is the ultimate point that you're trying
18 to make with respect to this testimony here.

19 BY MR. SHARMAN:

20 Q. Did you give your -- do you have anything that
21 would suggest that any of the letters that have been
22 admitted were mailed at any time other than the spring
23 of 2000?

24 A. I mean, you didn't produce us with the rest of
25 them; you gave us some of the letters.

1 Q. Do you have anything?

2 A. No, you have them.

3 MR. SHARMAN: I think that would be it, Your
4 Honor. Thank you.

5 THE COURT: All right. Mr. Long, I do not
6 have any questions for you.

7 MR. SLAYTON: No Redirect for me, Your
8 Honor.

9 THE COURT: All right. So, Mr. Long, you
10 may step down.

11 (Witness stood down.)

12

13 THE COURT: All right. Any other evidence?

14 MR. SLAYTON: No, no other evidence, Your
15 Honor.

16 THE COURT: All right. So at this point are
17 we at closing arguments?

18 MR. SLAYTON: Yes, Your Honor, I think so.

19 THE COURT: All right. Let's see. Mr.
20 Sharman? Closing arguments.

21 MR. SHARMAN: Morash versus Stroebel
22 (phonetic), which is just a very short citation, but one
23 that's helpful, on Page 6 of the printed part of that
24 case, which is a Fourth Circuit Court of Appeals case,
25 on Page 6 of the written portion it says: This

1 Plaintiff during the pendency of the case judicially
2 admitted and followed in fact, and thus -- the Court
3 said: Thus it is conclusive fact between these parties
4 of that fact. There's no issue then of that fact.

5 And that Court is basically just
6 restating the Federal Rules of Civil Procedure, Rule
7 36-B, which is in Bankruptcy 1736: The effect of an
8 admission, a matter admitted under this rule, is
9 conclusively established unless the Court on motion --
10 which we don't have any motion -- permits the admission
11 to be withdrawn.

12 We have the admissions that he pled
13 guilty to a felony. The principle negligence per se is
14 actually an intentional tort which has the phrase
15 negligence. And in negligence per se you've proven the
16 fact, if you've violated a statute, that you are one of
17 those bound by the statute, the person asserting it is
18 the one who's within the protective umbrella of the
19 statute, and the damages resulted from that.

20 Well, here he's bound by the
21 statute of Carnal Knowledge, otherwise known as
22 Statutory Rape. The child, Crystal Lewis, was the
23 person under that protection. The damages that she had
24 were as a result of that. It's per se-ing that of
25 malice.

1 The Plea Agreement shows that he
2 admitted it, a judicial admission. A Court of equity
3 can't undue an admission. Neither can a court of law.
4 Neither can a criminal court. An admission is an
5 admission.

6 The admissions of the discovery,
7 the Court on motion may -- and he made those admissions,
8 that he had sex with Crystal Lewis when she was 13 and
9 he was 23 and the child resulted from it.

10 He made a judicial admission with
11 the Plea of guilty. I made a judicial admission with
12 Plea Agreement. He made a judicial admission with the
13 Promissory Note which had a Confession of Judgment
14 Clause to it.

15 The cases that I mention Parsons
16 versus Parker phrases it in more of Victorian terms,
17 that even though a person does consent, they're deemed
18 to have no mind on the matter. It's deemed force.

19 Martin versus Commonwealth, both
20 the published and the published versions restate that
21 same thing, that even though there may be consent or
22 there's not physical force in the Statutory Rape, it's
23 deemed force, that constructive force is deemed force.

24 Lear versus Commonwealth states it
25 quite clearly, that even though Statutory Rape might be

1 sex with a minor without physical force, it is still
2 deemed to be rea (phonetic) and it is still deemed to
3 have force.

4 And Mr. Long's admissions, at
5 Number 12 he admitted Crystal D. Lewis was the victim of
6 Clyde A. Long, Jr.'s two counts of Carnal Knowledge with
7 the offense dates of December 10, 1999 and January 1,
8 2000. Response: The Defendant admits this request.

9 I hear counsel mentioning often
10 that issue, well, you have to find out his intent. But
11 that's not what the code says. At 523-A-6 it says: For
12 willful and malicious injury by the Debtor.

13 Willfulness can be strict
14 liability. Willfulness can be negligence per se.
15 Willfulness can be a violation of a statute. So can
16 malice. For willful and malicious injury by the Debtor.

17 And I heard him say that you had
18 written an opinion that said, but if there is good cause
19 or an excuse, okay. But he gave up that good cause when
20 he pled guilty and admitted he had violated not just
21 this child's rights but the laws of this Commonwealth.

22 One can search long and hard and
23 one will not find a case -- a bankruptcy case in which a
24 judgment for a child molestation has been discharged.
25 Because they're always found to be willful and malicious

1 for the reasons that Parsons versus Parker, Martin
2 versus Commonwealth, and Lear versus Commonwealth state:
3 It is a crime. It's malicious at its core.

4 In Kaye (phonetic) versus Comm is a
5 Circuit Court out of Culpeper in which Judge Berry had
6 said: Common law would find it to be so.

7 In Gee (phonetic) versus Shuffer
8 (phonetic) out of Fauquier County Circuit Court, Judge
9 Parker quoted Blackstone as saying that you have no need
10 to show consent or lack of consent, that's totally
11 irrelevant; he said that the common law would find --
12 which a Court of Equity can do -- would find that it is
13 a tort, an intentional tort.

14 As I mentioned, there is no
15 precedent that can be found for saying that person who
16 has pled guilty to having sex with a 13 year old from
17 which a child is born has stated a cause for a discharge
18 of that debt, of a Judgment that's already been entered
19 and entered as a result of an Agreement between the
20 parties, which was Exhibit 6 in which he agreed, all I
21 have to do is this little amount each month and I'm
22 good. And he agreed and admitted another judicial
23 admission that it was an intentional tort. I thank you,
24 Your Honor.

25 THE COURT: Mr. Sharman, when you mentioned

1 Bankruptcy Courts always find judgment for child
2 molestation to be willful and malicious, do you have
3 Bankruptcy Court Citations?

4 MR. SHARMAN: Yes, I had mentioned those a
5 little bit earlier. There are no citations to the
6 opposite. So, there are no citations one can find in
7 which, either at 7 or 13, a person has been able to
8 discharge their judgment of childhood sexual
9 molestation.

10 The ones that affirmed that or said
11 you can't discharge it: In re Halverson, 226 Bankruptcy
12 22, that's 1998, District of Minnesota; in re Louie,
13 L-O-U-I-E, 213 Bankruptcy 754, that's a Northern
14 District of California, 1997; Dutton versus Schwartz,
15 S-C-H-W-A-R-T-Z, it's 1982, that's a Montana case; in re
16 Carsrud or Carsrud, C-A-R-S-R-U-D, 161 Bankruptcy 246,
17 that's South Dakota, 1993.

18 In re Williams, 173 Bankruptcy 912,
19 Western District of Arkansas, 1994. And I'm sorry I
20 don't know that that one's a Sexual Assault; that might
21 have been just purely Assault and Battery.

22 And then in re Robert J. Pettey,
23 P-E-T-T-E-Y, it's 288 Bankruptcy 14, a Massachusetts
24 case, 2003. And then that created another one of Petty
25 versus Belanger ex rel., B-E-L-A-N-G-E-R, 232 Bankruptcy

1 543, it's a 1999 case.

2 And I have previously provided all
3 those citations to counsel.

4 THE COURT: Thank you, Mr. Sharman.

5 MR. SHARMAN: Thank you, Your Honor. And
6 thank you for your time. I know we did go way over the
7 one hour, but had a few surprises along the way.

8 THE COURT: Closing argument?

9 MR. SLAYTON: Your Honor at this point I'd
10 like to renew my Motion to Strike for the record. And
11 I'm not going to redo my Motion to Strike; I renewed it,
12 you've heard it, you don't need to hear it again. I'm
13 sure you got what I was saying at that point.

14 But I would like to point out a
15 couple things. Mr. Sharman has said that under Virginia
16 common law the crime to which Mr. Long pled guilty is
17 per se a violent criminal.

18 I would bring your attention to
19 U.S. v. Thornton, 554 F. 3rd 443, a Fourth Circuit,
20 19 -- a 2009 case in which the Federal Court was
21 determining whether Carnal Knowledge of a minor without
22 force is a violent or non-violent felony under the Armed
23 Criminal Career Criminal Act.

24 And the Court found, the Fourth
25 Circuit found that it was not, that it was a non-violent

1 felony under the Armed Career Criminal Act in the U.S.
2 Code. I think that's an interesting fact as far as
3 whether it's common law or not. I think if it was, the
4 Fourth Circuit would have found that.

5 Consequently, the issue, I think,
6 if you go to your decision in Eppert, is to decide
7 whether this was a willful and malicious injury. Now,
8 yes, we look at the code, and that says willful and
9 malicious injury; but we all know that the code doesn't
10 spell what maliciousness and willful injury actually
11 means. And that's why we have to turn to the case law.

12 And there is no Fourth Circuit
13 opinion, no opinion that we have found in Virginia and
14 none that, I believe, Mr. Sharman has cited in Virginia
15 that speaks to this issue. So we go to the opinions of
16 the Fourth Circuit and your opinion regarding what is a
17 willful and malicious injury.

18 And then that leads to the argument
19 that I made at the close of Mr. Sharman's primary case
20 that that hasn't been proven. And it hasn't been
21 proven after my client testified.

22 Actually, the testimony in the
23 letters that were put into evidence actually show that
24 after the time of the incident, right, after the time of
25 the two acts of Carnal Knowledge, which were '99 and

1 January 1st of '01, after which these letters were
2 written, showed that my client wanted to continue to
3 have a relationship with this woman.

4 There's no evidence before Your
5 Honor saying that when Mr. Long knew that she was under
6 age. What he knew is that he cared about her, cared
7 about how she was doing, wanted to have a relationship
8 with her. And I think that shows you what's in his
9 mind. And I think that's important for determining
10 whether it's willful and malicious.

11 And I don't think Mr. Sharman and
12 Miss Lewis have carried their burden of proof today. So
13 I think after you go back to your office, rest up, and
14 get to reading these cases and reviewing the record and
15 reviewing the documents, I think you'll come to the same
16 conclusion.

17 Though a tough conclusion to come
18 to. I'm not, you know, saying, this is going to be an
19 easy decision that you have to write. But I think it's
20 the right decision. And if you follow the law as laid
21 out in the Fourth Circuit and you follow that with the
22 evidence that was presented today, I think you can only
23 arrive at one conclusion, and that's the debt's
24 dischargeable.

25 I would point out that Mr. Sharman

1 made a lot of comments about how the agreement was a
2 judicial admission. It wasn't. Right? It wasn't
3 admitted as evidence -- I don't believe as evidence.
4 All it was was an Agreement signed by my client. An
5 Agreement, an Agreement to pay.

6 And he said on the stand that it
7 was because he wanted to be done with it. Lots of
8 people settle cases because they want to be done with
9 it. Right? And the fact is that he made payments for
10 two years or more.

11 This isn't somebody who's just, you
12 know, filed bankruptcy right after he agreed to sign the
13 Agreement and tried to get out of it. Right? There
14 were lots of other reasons why my client filed
15 bankruptcy. This was one of them.

16 And I believe when you analyze the
17 law and apply the facts, apply them to all the facts,
18 you have to find the debt's dischargeable. Thank you.

19 THE COURT: Thank you, Mr. Slayton. Thank
20 you, Mr. Sharman.

21 All right. We will take a look at
22 the exhibits that have been filed. I will take a look
23 at this matter. And I will provide a ruling after
24 taking the matter under advisement.

25 MR. SLAYTON: Thank you, Your Honor.

1 THE COURT: All right. So that concludes
2 our matter today. All right. Thank you all.

3 MR. SHARMAN: Thank you.

4 MR. SLAYTON: Thank you.

5

6 (Hearing concluded.)

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CERTIFICATE OF REPORTER:

* * * *

I, SHELLY TYREE, a shorthand reporter and notary public in the State of Virginia, and whose commission expires December 31, 2015, do certify that the foregoing is a true and accurate transcript of the hearing in re Crystal D. Lewis v. Clyde A. Long, Jr. at the place and on the date hereinbefore set forth.

I further certify that I am neither attorney nor counsel for, nor related to or employed by, any of the parties to the action in which this hearing is taken, and further that I am not a relative or employee of any attorney or counsel employed in this case, nor am I financially interested in the action.

Given under my hand this 25th day of November, 2013.

Shelly M. Tyree
Notary Public Reg. #204352

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